

The U.P. Information Service Rules, 1982

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State of Uttar Pradesh - Act

The U.P. Information Service Rules, 1982

UTTAR PRADESH

India

The U.P. Information Service Rules, 1982

Rule THE-U-P-INFORMATION-SERVICE-RULES-1982 of 1982

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The U.P. Information Service Rules, 1982

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Part I

General

1.

Short title and commencement.

(1)

These rules may be called the Uttar Pradesh Information Service Rules, 1982.

(2)

They shall come into force at once.

2.

Status of the service.

- The Uttar Pradesh Information Service is a State Service comprising Groups "A" and "B" posts.

3.

Definitions.

- In these rules, unless there is anything repugnant in the subject or context,-

(a)

"Appointing authority" means the Governor;

(b)

"Citizen of India" means a person who is or is deemed to be a citizen of India under Part II of the Constitution;

(c)

"Commission" means the Uttar Pradesh Public Service Commission;

(d)

"Constitution" means the Constitution of India;

(e)

"Director" means the Director of Information and Public Relations, Uttar Pradesh,

(f)

"Government" means the State Government of Uttar Pradesh;

(g)

"Governor" means the Governor of Uttar Pradesh;

(h)

"Member of the service" means a person substantively appointed under these rules or the rules or orders in force prior to the commencement of these rules to a post in the cadre of the service,

(i)

"Service" means the Uttar Pradesh Information Service;

(j)

"Substantive appointment" means an appointment, not being an ad hoc appointment, on a post in the cadre of the service, made after selection in accordance with the rules and if there are no rules, in accordance with the procedure prescribed for the time being by executive instructions, issued by the Government;

(k)

"Year of recruitment" means a period of twelve months commencing from the first day of July of a calendar year.

Part II

Cadre

4.

Cadre of Service.

(1)

The strength of the service and of each category of posts therein shall be such as may be determined by the Governor from time to time.

(2)

The strength of the service and of each category of posts therein shall, until orders varying the same are passed under sub-rule (1), be as given in Appendix 'A':

Provided that-

(i)

the appointing authority may leave unfilled or the Governor may hold in abeyance any vacant post without thereby entitling any person to compensation; or

(ii)

the Governor may create such additional permanent or temporary post from time to time as he may consider proper.

Part III ? Recruitment

5.

Source of recruitment.

- Recruitment to the various categories of posts in the service shall be made from the following sources:

(1)

Assistant Director. - (i) 50% posts by direct recruitment through the Commission. ..

(ii)

50% post by promotion in consultation with the Commission from amongst the following ;

(a)

Such permanent Press Release Officer and Feature Writers as have put in at least five years' service as Press Release Officer/Feature Writer.

(b)

Such permanent Information Officer as have put in at least five years' service as Information Officer.

(c)

Such permanent District Information Officers as have put in at least five years' service as District Information Officers.

(d)

Such permanent Superintendents of the Departments as have put in at least five years' service as Superintendent.

(2)

Assistant Director (Urdu). - By direct recruitment through the Commission;

(3)

Deputy Director. - By promotion through the Departmental Selection Committee from amongst such permanent Assistant Directors, Exhibition Officers, Assistant Directors (Urdu), Film Production Officers, Officer-in-charge, (Publication), Song and Drama Officers, District Level Public Relations Officers and Editors as have put in at least five year's service as such.

6.

Reservation.

- Reservations for the candidates belonging to Scheduled Castes, Scheduled Tribes and other categories shall be in accordance with the orders of the Government in force at the time of the recruitment.

Part IV ? Qualifications

7.

Nationality.

- A candidate for direct recruitment to a post in the service must be:

(a)

a citizen of India; or

(b)

a Tibetan refugee who came over to India before the 1st January, 1962 with the intention of permanently settling in India; or

(c)

a person of Indian origin who has migrated from Pakistan, Burma, Sri Lanka or any of the East African countries of Kenya, Uganda and the United Republic of Tanzania (formerly Tanganyika and Zanzibar) with the intention of permanently settling in India :

Provided that a candidate belonging to category (b) or (c) above must be a person in whose favour a certificate of eligibility has been issued by the State Government:

Provided further that a candidate belonging to category (b) will also be required to obtain a certificate of eligibility granted by the Deputy Inspector General of Police, Intelligence Branch, Uttar Pradesh :

Provided also that if a candidate belongs to category (c) above, no certificate of eligibility will be issued for a period of more than one year and the retention of such a candidate in service beyond a period of one year, shall be subject to his acquiring Indian citizenship.

Note.-A candidate in whose case a certificate of eligibility is necessary but the same has neither been issued nor refused, may be admitted to an examination or interview and he may also be provisionally appointed subject to the necessary certificate being obtained by him or issued in his favour.

8.

Academic qualifications.

- A candidate for direct recruitment to the various posts in the service must possess the following qualifications:

Post

Qualifications

1.

Assistant Director

...

1.

Degree of a University established by law in India with Hindi as one of the subjects or any other qualification in Hindi recognised as equivalent to B.A. standard.

2.

At least two years' journalistic experience as Editor or a member of the additional staff of a high class newspaper or news agency.

3.

Knowledge of Urdu and administrative experience in some responsible position shall be considered as preferential qualification.

2.

Assistant Director (Urdu)

...

1.

Degree of a University established by law in India with Urdu as one of the subjects.

2.

At least two years' experience of editing in an established news paper or news agency.

3.

Working knowledge of Hindi and administrative experience on some responsible post and Post graduate Degree in Urdu shall be considered a preferential qualification.

9.

Preferential qualification.

- A candidate who has-

(i)

served in the Territorial Army for a minimum period of two years; or

(ii)

obtained a 'B' Certificate of National Cadet Corps,

shall, other things being equal, be given preference in the matter of direct recruitment.

10.

Age.

- A candidate for direct recruitment must have attained the age of 21 years and must not have attained the age of more than 28 years on January 1 of the year in which recruitment is to be made, if the posts are advertised during the period January 1 to June 30 and on July 1, if the posts are advertised during the period on July 1 to December 31 ;

Provided that the upper age limit in the case of candidates belonging to the Scheduled Castes, Scheduled Tribes and such other categories as may be notified by the Government from time to time shall be greater by such number of years as may be specified.

11.

Character.

- The character of a candidate for direct recruitment to a post in the service must be such as to render him suitable in all respects for employment in Government service. The appointing authority shall satisfy itself on this point.

Note.-Persons dismissed by the Union Government or by a State Government or by a Local Authority or by a Corporation or body owned or controlled by the Union Government or a State Government shall be ineligible for

appointment to any posts in the service. Persons convicted of an offence involving moral turpitude shall also be ineligible.

12.

Marital status.

- A male candidate who has more than one wife living or a female candidate who was married a man already having a wife living shall not be eligible for appointment to a post in the service :

Provided that the Governor may, if satisfied that there exist special grounds for doing so, exempt any person from the operation of this rule.

13.

Physical fitness.

- No candidate shall be appointed to a post in the service unless he be in good mental and bodily health and free from any physical defect likely to interfere with the efficient performance of his duties. Before a candidate is finally approved for appointment he shall be required to pass an examination by a Medical Board :

Provided that such examination by a Medical Board shall not be necessary in case of a candidate recruited by promotion.

Part V

Procedure For Recruitment

14.

Determination of vacancies.

- The appointing authority shall determine the number of vacancies to be filled during the course of the year as also the number of vacancies to be reserved for candidates belonging to Scheduled Castes, Scheduled Tribes and other categories under Rule 6. The vacancies in the post of Assistant Director/Assistant Director (Urdu) shall be intimated to the Commission.

15.

Procedure for direct recruitment.

(1)

Application for being considered for direct recruitment shall be called by the Commission in the prescribed form, which may be obtained from the Secretary to the Commission.

(2)

The Commission shall, having regard to the need for securing due representation of the candidates belonging to the Scheduled Castes, Scheduled Tribes and other categories in accordance with Rule 6, call for interview such number of candidates, who fulfil the requisite qualifications, as they consider proper.

(3)

The Commission shall prepare a list of candidates in order of their proficiency as disclosed by the marks obtained by each candidate in the interview. If two or more candidates obtain equal marks, the Commission shall arrange their names in order of merit on the basis of their general suitability for the service. The number of the names in the list shall be larger (but not larger by more than 25%) than the number of the vacancies. The Commission shall forward the list to the appointing authority.

16.

Procedure for recruitment by promotion.

(1)

Assistant Director.- Recruitment by promotion to the post of Assistant Director shall be made on the basis of merit in accordance with the Uttar Pradesh Promotion by Selection in Consultation with the Public Service Commission (Procedure) Rules, 1970, as amended from time to time.

(2)

(a)

Deputy Director.-Recruitment by promotion to the post of Deputy Director shall be made on the basis of seniority subject to the rejection of unfit through the Departmental Selection Committee constituted as under :

(i)

the Secretary, Personnel Department;

(ii)

the Secretary, Information Department; and

(iii)

the Director.

Note.-Senior Secretary shall be the Chairman of the Committee.

(b)

The appointing authority shall prepare an eligibility list of the candidates, arranged in order of seniority and place it before the Departmental Selection Committee along with their character rolls and such other records, pertaining to them, as may be considered proper.

(c)

The Departmental Selection Committee shall consider the cases of candidates on the basis of records, referred in Clause (b), and, if it considers necessary, it may interview the candidates also.

(d)

The Departmental Selection Committee shall prepare a list of selected candidates arranged in order of seniority and forward the same to the appointing authority.

17.

Combined select list.

- If in any year of recruitment appointments are made both by direct recruitment and promotion, a combined select list shall be prepared by taking the names of candidates alternately from the lists prepared under Rule 16.

Part VI

Appointment, Probation, Confirmation and Seniority

18.

Appointment.

(1)

Subject to the provisions of sub-rule (2) the appointing authority shall make appointment by taking the names of candidates in the order in which they stand in the lists prepared under Rule 15,16 or 17, as the case may be.

(2)

Where in any year of recruitment appointments are to be made both by direct recruitment and by promotion, regular appointments shall not be made unless selections are made from both the sources and a combined list is prepared in accordance with Rule 17.

(3)

If more than one order of appointment are issued in respect of any one selection, a combined order shall also be issued, mentioning the names of the persons in order of seniority as determined in the selection or, as the case may be, as it stood in the cadre from which they are promoted. If the appointments are made both by direct recruitment and by promotion, names shall be arranged in accordance with the order, referred to in Rule 17.

(4)

The appointing authority may make appointments in temporary or officiating capacity also from the lists referred to in sub-rule (1). If no candidate borne on these lists is available, he may make appointments in such vacancy from amongst persons eligible for appointments under these rules. Such appointments shall not last for a period exceeding one year or beyond the next selection under these rules, whichever be earlier, and where the post is within the purview of the Commission, the provisions of Regulation 5 (a) of the U. P. Public Service Commission (Limitation of Functions) Regulations, 1954, shall apply.

19.

Probation.

(1)

A person on appointment to a post in the service in or against a permanent vacancy shall be placed on probation for a period of two years.

(2)

The appointing authority may, for reasons to be recorded/extend the period of probation in individual cases specifying the period of such extension :

Provided that, save in exceptional circumstances, the period of probation shall not be extended beyond one year and in no circumstance beyond two years.

(3)

If it appears to the appointing authority at any time during or at the end of the period of probation or extended period of probation that a probationer has not made sufficient use of his opportunities or has otherwise failed to give satisfaction, he may be reverted to his substantive post, if any, and if he does not hold a lien on any post, his services may be dispensed with.

(4)

A probationer who is reverted or whose services are dispensed with under sub-rule (3) shall not be entitled to any compensation.

(5)

The appointing authority may allow continuous service, rendered in an officiating or . temporary capacity in a post included in the cadre or any other equivalent or higher post, to be taken into account for the purpose of computing the period of probation.

20.

Confirmation.

- A probationer shall be confirmed in his appointment at the end of the period of probation or the extended period of probation, if-

(a)

his work and conduct are found to be satisfactory;

(b)

his integrity is certified; and

(c)

the appointing authority is satisfied that he is otherwise fit for confirmation.

21.

Seniority.

(1)

Except as hereinafter provided, the seniority of persons in any category or post shall be determined from the date of the order of substantive appointment and if two or more persons are appointed together by the order in which their names are arranged in the appointment order :

Provided that if the appointment order specifies a particular back date with effect from which a person is substantively appointed, that date will be deemed to be the date of order of substantive appointment and, in other case, it will mean the date of issue of the order :

Provided further that, if more than one order of appointment are issued in respect of any one selection, the seniority shall be as mentioned in the combined order of appointment under sub-rule (3) of Rule 18.

(2)

The seniority inter se of persons appointed directly on the result of any one selection, shall be the same as determined by the Commission:

Provided that a candidate recruited directly may lose his seniority if he fails to join without valid reasons when vacancy is offered to him. The decision of the appointing authority as to the validity of reasons shall be final.

(3)

The seniority inter se of persons appointed by promotion shall be same as it was in the cadre from which they were promoted.

Part VII ? Pay, Etc.

22.

Scale of pay.

(1)

The scales of pay admissible to persons appointed to the various categories of post in the service, whether in a substantive or officiating capacity or as a temporary measure, shall be such as may be determined by the Government from time to time.

(2)

The scales of pay at the time of the commencement of these rules are given as follows :

Name of post

Scale of pay

1.

Assistant Director

Rs. 850-40-1050-E.B.-50-1300-60-1420-E.B.-60-1720

2.

Assistant Director (Urdu)

Rs. 850-40-1050-E.B.-50-1300-60-1420-E. B.-60-1720

3.

Deputy Director

Rs. 1250-50-1300-60-1600-E.B.-60-1900-75-2050.

23.

Pay during probation.

(1)

Notwithstanding any provision in the fundamental rules, to the contrary, a person on probation, if he is not already in permanent Government service, shall be allowed his first increment in the time scale when he has completed one year of satisfactory service, has passed departmental examination and undergone training where prescribed and second increment after two years of service when he has completed the probationary period and is also confirmed :

Provided that if the period of probation is extended on account of failure to give satisfaction, such extension shall not count for increment unless the appointing authority directs otherwise.

(2)

The pay during probation of a person who was already holding a post under the Government, shall be regulated by the relevant fundamental rules :

Provided that if the period of probation is extended on account of failure to give satisfaction, such extension shall not count for increment unless the appointing authority directs otherwise.

(3)

The pay during probation of a person already in permanent Government service shall be regulated by the relevant rules, generally applicable to Government servants serving in connection with the affairs of the State.

24.

Criteria for crossing efficiency bar.

- No person shall be allowed to cross-

(i)

the first efficiency bar unless his work and conduct are found to be satisfactory and his integrity is certified; and

(ii)

the second efficiency bar unless his work and conduct are found to be good and he is able to perform his duties in an efficient manner with sufficient initiative and drive and unless his integrity is certified.

25.

Canvassing.

- No recommendations, either written or oral, other than those required under the rules applicable to the post or service will be taken into consideration. Any attempt on the part of a candidate to enlist support directly or indirectly for his candidature will disqualify him for appointment.

26.

Regulation of other matters.

- In regard to the matters not specifically covered by these rules or special orders, persons appointed to the service shall be governed by the rules, regulations and orders applicable generally to Government servants serving in connection with the affairs of the State.

27.

Relaxation from the conditions of service.

- Where the State Government is satisfied that the operation of any rule regulating the conditions of service of person appointed to the service causes undue hardship in any particular case, it may, notwithstanding anything contained in the rules applicable to the case by order, dispense with or relax the requirements of that rule to such extent and subject to such conditions as it may consider necessary for dealing with the case in just and equitable manner :

Provided that where a rule has been framed in consultation with the Commission that body shall be consulted before the requirements of the rule are dispensed with or relaxed.

28.

Savings.

- Nothing in these rules shall affect reservations and other concessions required to be provided for the candidates belonging to the Scheduled Castes, Scheduled Tribes and other special categories of persons in accordance with the orders of the Government issued from time to time in this regard.

Appendix A

[See Rule 4(1)]

Strength of the Service

Serial No.

Name of the post

Permanent

Temporary

Total

1.

Deputy Director

1

6

7

2.

Assistant Director

6

1

7

3.

Assistant Director (Urdu)

1

-

1

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